

The inequallity that now is, has bin introduced by the Lawes civill. I know that *Aristotle* in the first booke of his *Politiques*, for a foundation of his doctrine, maketh men by Nature, some more worthy to Command, meaning the wiser sort (such as he thought himselfe to be for his Philosophy;) others to Serve, (meaning those that had strong bodies, but were not Philosophers as he;) as if Master and Servant were not introduced by consent of men, but by difference of Wit: which is not only against reason; but also against experience. For there are very few so foolish, that had not rather governe themselves, than be governed by others: Nor when the wise in their own conceit, contend by force, with them who distrust their owne wisdom, do they alwaies, or often, or almost at any time, get the Victory. If Nature therefore have made men equall, that equalitie is to be acknowledged: or if Nature have made men unequall; yet because men that think themselves equall, will not enter into conditions of Peace, but upon Equall termes, such equalitie must be admitted. And therefore for the ninth law of Nature, I put this, *That every man acknowledge other for his Equall by Nature.* The breach of this Precept is *Pride*.

On this law, dependeth another, *That at the entrance into conditions of Peace, no man require to reserve to himselfe any Right, which he is not content should be reserved to every one of the rest.* As it is necessary for all men that seek peace, to lay down certaine Rights of Nature; that is to say, not to have libertie to do all they list: so is it necessarie for mans life, to retaine some; as right to governe their owne bodies; enjoy aire, water, motion, waies to go from place to place; and all things else, without which a man cannot live, or not live well. If in this case, at the making of Peace, men require for themselves, that which they would not have to be granted to others, they do contrary to the precedent law, that commandeth the acknowledgment of naturall equalitie, and therefore also against the law of Nature. The observers of this law, are those we call *Modest*, and the breakers *Arrogant* men. The Greeks call the violation of this law *μεγαλεια*; that is, a desire of more than their share.

The tenth,
against Ar-
rogance.

Also if a man be trusted to judge between man and man, it is a precept of the Law of Nature, *that he deale Equally between them.* For without that, the Controversies of men cannot be determined but by Warre. He therefore that is partiall in judgment, doth what in him lies, to deterre men from the use of Judges, and Arbitrators; and consequently, (against the fundamentall Lawe of Nature) is the cause of Warre.

The eleventh
Equity.

The observance of this law, from the equall distribution to each man, of that which in reason belongeth to him, is called *EQUITY*, and (as I have sayd before) distributive Justice: the violation, *Acceptation of persons*, *προσωποληψια*.

And from this followeth another law, *That such things as cannot be divided, be enjoyed in Common, if it can be; and if the quantity of the thing permit, without Stint; otherwise Proportionably to the number of them that have Right.* For otherwise the distribution is Unequall, and contrary to Equitie.

The twelfth,
Equall use of
things Com-
mon.